

served the document “[o]n July 31, 2025.” That date is over four months **before** Defendant requested the hearing date for the Motion. It is also over six months **prior** to the date Defendant filed the Motion, which is also the date defense counsel signed the Motion. The statement cannot be accurate.

4 This motion is based on this notice, the attached memorandum of points and authorities, the
5 declaration of counsel, the court file, any evidence presented at hearing, and such further argument or
6 evidence as may be presented at the hearing.
7
8 Dated: February 10, 2026
9
10 Respectfully Submitted,
11 The T. Scott Law Group,
12 Taira Scott
 Taira Scott
 Attorneys for Defendant

Additionally, the PoS indicates the “method of service” was via: (1) “emailing to the address(es) listed above where noted,” and (2) “faxing to the fax number(s) listed above.” The recipient information, however, does not include an email address or a fax number. While there is a phone number listed, there is no indication that the number is a fax number – as opposed to a telephone number. Given that fax numbers are much less prevalent, some indication that the number is a fax would normally be included.

Given the above, there is insufficient evidence to show that the Motion was properly served on Plaintiff.

Even if the Court were to find that the documents were properly served, the Motion was not timely served. As outlined above, the notice of motion and supporting papers must be served on the opposing party at least 83 days (when serve via fax/email) before the hearing. Given the March 12, 2026, hearing date, that means that the latest date the Motion could be served was December 19, 2025. Even if there were evidence the Motion was served the same date it was filed, that would only be 30 days between notice and the hearing – well short of the required 83 days.

“Because it is potentially case dispositive and usually requires considerable time and effort to prepare, a summary judgment motion is perhaps the most important pretrial motion in a civil case. Therefore, the Legislature was entitled to conclude that parties should be afforded a minimum notice period for the hearing of summary judgment motions so that they have sufficient time to assemble the relevant evidence and prepare an adequate opposition.” (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 117-18.) In “light of the express statutory language, trial courts do not have authority to shorten the minimum notice period for summary judgment hearings.” (*Id.* at 118.)

Defendant has failed to show that the Motion was properly and timely served on Plaintiff.

Conclusion

Defendant Charlie Ross’ Motion for Summary Judgment is **denied without prejudice** to requesting a new hearing date and filing/serving the papers as required by the Code.

5. 9:00 AM CASE NUMBER: C23-03011
CASE NAME: ANGEL MONTOYA VS. CITY OF RICHMOND
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER ANSWERS AND ATTENDANCE AT

DEPOSITION OF SHASA CURL

FILED BY: MONTOYA, ANGEL

TENTATIVE RULING:

This matter has been reassigned to Department 32 pursuant to Code of Civil Procedure section 170.6 and reset for May 29, 2026.

6. 9:00 AM CASE NUMBER: C24-00136

CASE NAME: RONALD WEBSTER VS. GREGORY BROOKS

***HEARING ON MOTION IN RE: STRIKE CCP 425.16 AND REQUEST FOR ATTORNEY FEES**

FILED BY: BOYD, STACEY

TENTATIVE RULING:

Plaintiff Ronald Webster has sued several governmental agents and entities, including Stacey Boyd for intentional torts. A demurrer to his complaint is being heard contemporaneously with this motion. The fourth cause of action against Stacey Boyd, added August 28, 2025, is for general negligence arising out of an incident on December 20, 2024 where Plaintiff attempted to serve summons of this lawsuit through her. He alleges that Ms. Boyd accepted service on behalf of the county, but later signed a declaration indicating she could not do so. This improper service was the basis for setting aside a default judgment. Defendant Boyd now seeks to strike this cause of action pursuant to California Code of Civil Procedure section 425.16(b) (Anti-SLAPP). The Court received no timely opposition.

Section 425.16(b)(1) states: "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim."

"Resolution of an anti-SLAPP motion involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by [Code of Civil Procedure,] section 425.16. If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success." (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384 (internal citations omitted).)

The claim in the fourth cause of action is entirely related to this pending litigation and arises out of communications that have "some connection . . . to the action." (*Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1241.) That renders it subject to the litigation privilege. "The litigation privilege, codified at Civil Code section 47, subdivision (b), provides that a publication or broadcast made as part of a judicial proceeding is privileged. This privilege is absolute in nature, applying to all publications, irrespective of their maliciousness." (*Timothy W. v. Julie W.* (2022) 85 Cal.App.5th 648, 661-662.) The privilege "is not limited to statements made during a trial or other proceedings, but may extend to steps taken prior thereto, or afterwards." (*Action Apartment Assn, supra*, 41 Cal.4th at 1241.) The first prong of the anti-SLAPP analysis has therefore been met.